

26CHCV00031 26CHCV00031

County: los-angeles

Division: Civil Law and Motion

Department: F47

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Case Number: 26CHCV00031 Hearing Date: September 21, 2026 Dept: F47

Dept. F47

Date: 9/21/26

Case #26CHCV00031

DEMURRER &
MOTION TO STRIKE TO THE ORIGINAL COMPLAINT

Demurrer & Motion to Strike were filed on 3/30/26.

MOVING PARTY: Defendant Henry Mayo Newhall Memorial
Hospital

JOINING PARTY: Defendant Albert Dekker, M.D.

RESPONDING PARTY: Plaintiff Michael Smith

NOTICE: ok

Demurrer is to the entire complaint:

1. Negligence (Medical Malpractice)
2. Professional Negligence
3. Negligent Infliction of Emotional Distress

4. Failure to Provide Comfort Care/Elder Neglect

5. Wrongful Death

RELIEF REQUESTED IN MOTION TO STRIKE: An order striking certain allegations/claims in the complaint.

RULING: The hearing on the demurrer and motion to strike are placed off calendar.

SUMMARY OF FACTS & PROCEDURAL HISTORY

This action arises from the death of Plaintiff Michael Smith's (Plaintiff) spouse, Cindy Lee Smith (Decedent), on 8/5/23. On 1/6/26, Plaintiff, representing himself, filed this action against Defendants Henry Mayo Newhall Memorial Hospital, erroneously sued as Henry Mayo (Henry Mayo) and Albert Decker/Dekker, M.D. (Dr. Dekker) for: (1) Negligence (Medical Malpractice), (2) Professional Negligence, (3) Negligent Infliction of Emotional Distress, (4) Failure to Provide Comfort Care/Elder Neglect and (5) Wrongful Death.

In response to meet and confer efforts by Henry Mayo, which began on 2/24/26, regarding the complaint, Plaintiff indicated that he intended to file an amended complaint. (See Irvin Decl.). Despite Plaintiff's repeated representations that he would be filing an amended complaint, as of 3/27/26, Plaintiff had not filed an amended complaint. Id. Therefore, on 3/30/26, Henry Mayo filed and served the instant demurrer to the entire complaint and motion to strike which seeks to strike certain allegations in the complaint.

On 4/2/26, Dr. Dekker filed and served notices of joinder in the demurrer and motion to strike filed by Henry Mayo.

On 4/3/26, Plaintiff filed a First Amended Complaint.

On 6/22/26, Dr. Dekker filed and served a demurrer to the First Amended Complaint which is scheduled for hearing on 2/11/27.

On 9/14/26, Dr. Dekker filed and served a "Notice of Non-Receipt of Opposition to Defendant Henry Mayo Newhall Memorial Hospital's

Motion to Strike and Demurrer.”

ANALYSIS

The Court finds that the filing of Plaintiff's First Amended Complaint on 4/3/26 renders Henry Mayo's demurrer and motion to strike to the original complaint moot. See CCP 472(a). However, since no proof of service for the First Amended Complaint has been filed, it is not clear if Henry Mayo had notice of the filing of the First Amended Complaint. Therefore, Plaintiff is ordered to serve the First Amended Complaint on Henry Mayo and file proof of such service with the Court. Henry Mayo will then have 30 days from the service of the First Amended Complaint on it to respond to the First Amended Complaint.

CONCLUSION

The demurrer and motion to strike are placed off calendar as moot due to the filing of a First Amended Complaint. Plaintiff is ordered to serve the First Amended Complaint on counsel for Henry Mayo and to file proof of such service with the court. Henry Mayo will then have 30 days from the service of the First Amended Complaint on it to respond to the First Amended Complaint.